Mukesh Chauhan vs State Of U.P. on 23 September, 2020

Author: Neeraj Tiwari

Bench: Neeraj Tiwari

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 72

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 22349 of 2020

Applicant :- Mukesh Chauhan

Opposite Party :- State of U.P.

Counsel for Applicant :- Maimoona Fatima

Counsel for Opposite Party :- G.A.

Hon'ble Neeraj Tiwari,J.
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Heard learned counsel for the applicant, learned AGA for the State and perused the material placed on record.

It is contended by the learned counsel for the applicant that the applicant is wholly innocent and he has been falsely implicated in the present case. Applicant and informant are real brothers and they were having ancestral property dispute due to which some scuffle took place between them in which present F.I.R. has been lodged. There was no motive of the applicant to commit the alleged offence. It is further submitted that the injuries are simple in nature. Applicant does not have any criminal history. It is next contended that there are no chances of the applicant of fleeing away from the judicial process or tampering with the prosecution evidence. It is next contended by the learned counsel for the applicant that the applicant is in jail since 24.05.2020 and in case he is enlarged on bail, he will not misuse the liberty of bail.

Learned A.G.A. has opposed the prayer for bail, but could not dispute the aforesaid facts.

Considering the facts and circumstances of the case and also perusing the material on record, without expressing any opinion on the merit of the case, let the applicant -Mukesh Chauhan, involved in case crime No. 173 of 2020, under Sections 307, 504, 506 IPC, police station -Shahpur, District -Gorakhpur be released on bail on his furnishing a personal bond and two sureties, out of which one by direct family member and another by local surety, each of the like amount to the satisfaction of court concerned. It is further provided that this bail order available on the official website of the High Court will be taken to be the authentic one and certified copy shall be submitted before that court concerned as soon as it is issued.

This bail order would be subject to the fulfillment of following conditions:-

> 1. The applicant shall not tamper with the prosecution evidence by intimidating/ pressurizing the witnesses, during the investigation or trial.
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> 2. The applicant shall cooperate in the trial sincerely without seeking any adjournment.
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> 3. The applicant shall not indulge in any criminal activity or commission of any crime after being released on bail.
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> 4. The applicant shall remain present before the trial court on each date fixed, either personally or through his counsel. In case of his absence, without sufficient cause, the trial court may proceed against him under Section 229-A of the Indian Penal Code;
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> 5. In case, the applicant misuses the liberty of bail and in order to secure his presence proclamation under Section 82 Cr.P.C. is issued and the applicant fails to appear before the Court on the date fixed in such proclamation, then, the trial court shall initiate proceedings against him, in accordance with law, under Section 174-A of the Indian Penal Code.
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> 6. The applicant shall remain present, in person, before the trial court on the dates fixed for (i) opening of the case, (ii) framing of charge and (iii) recording of statement under Section 313 Cr.P.C. If in the opinion of the trial court default of this condition is deliberate or without sufficient cause, then it shall be open for the trial court to treat such default as abuse of liberty of his bail and proceed against him in accordance with law.
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> 7. In case the applicant has been enlarged on short term bail as per the order of committee constituted under the orders of Hon'ble Supreme Court his bail shall be effective after the period of short term bail comes to an end.

In case of breach of any of the above conditions, it shall be a ground for cancellation of bail.

Order Date :- 23.9.2020 Sartaj